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HIGH COURT OF CHHATTISGARH AT BILASPUR

MCRC No. 9580 of 2026

Vinay Kumar Son Of Oshihur Singh, Aged About 25 Years Resident Of Khurshipaar, Secter 11, Gali No. 6, Thana - Khurshipaar, Durg, District - Durg C.G.

... Applicant

versus

State Of Chhattisgarh Through The Police Of Police Station Incharge - Thana Ganj, Raipur, District Raipur, C.G.

... **Respondent**

(Cause title taken from Case Information System)

For Applicant	:	Mr. Aakash Aahuja, Advocate
For Respondent/State	:	Ms. Supriya Upasane, Govt. Advocate

Hon'ble Shri Justice Ravindra Kumar Agrawal

Order on Board

29/10/2026

1. Present is a first bail application under Section 483 of Bhartiya Nagarik Suraksha Sanhita, 2023 (hereinafter referred as “BNSS”). The applicant is claiming regular bail in connection with Crime No. 110/2026, registered at Police Station Ganj, Raipur for the offence under Section 7 of the Chhattisgarh Gambling (Prohibition) Act, 2022 and Sections 112(2) of the Bhartiya Nyay Sanhita, 2023.

2. The case of the prosecution is that on 13.04.2026, the police of Police Station Ganj, while patrolling, received a secret information that a person is engaged in online gambling in a cricket match through mobile phone, and such person was present in his Honda City Car bearing No. CG 04 NS 5007 at Nagorao Gali underbridge. The police conducted a raid and arrested co-accused Mandeep Singh, who was found in the said Honda City Car. On interrogation and search of Mandeep Singh, one mobile phone and cash amounting to Rs. 95,000/- were seized from him. In his memorandum statement, he disclosed that he was engaged in online cricket gambling through the betting app “3 Stumps” and that co-accused Babu Khemani was the owner of the said online book. Kamlesh Dewangan, who is the agent of Babu Khemani, collected the cash amount from the online gambling activities. He also disclosed that Karan Khemani, Brahmanand Khemani, Shrikant Sinha and Vijay Pinjwani, mobile Nos. 9893324707, 7044930036 and 7400930036, co-accused Amit Andani, mobile No. 9111555393, Harsh Nagdev, mobile No. 9526125220, Vinod Nara, mobile No. 9399898366, Akash, mobile No. 9826197555, and Rishikesh, mobile No. 9526125220, were engaged in online gambling from Pune, Mumbai and Goa and were running betting panels for IPL cricket matches. From the mobile phones of co-accused Mandeep Singh, ID transactions from mobile Nos. 917777991972 and 917777991752, and from the mobile phone of Babu Khemani bearing No. 447782207749, ID transactions were reflected. Transactions between Kamlesh Dewangan through his mobile number to Karan Khemani, Brahmanand Khemani and Shrikant Sinha through their mobile numbers were also reflected. The

involvement of the accused persons in online gambling in IPL cricket matches was extracted. Thereafter, the offence was registered and investigation was started.

3. During the investigation, the memorandum statement of Gulshan @ Babu Khemani was recorded, in which he disclosed the involvement of the Kamlesh Dewangan and other co-accused persons stating that they managed cash transactions in bank accounts. The accused Gulshan @ Babu Khemani also disclosed the manner in which they managed the affairs of online gambling, purchase of various properties at different places, and the involvement of other accused persons in their syndicate. The present applicant has been arrested on 15.04.2026 and from him 01 laptop, 03 mobile phones, 04 SIM cards and 01 notebook have been seized from Bhawanipatna, Odisha. After investigation the charge sheet has been filed.

4. Learned counsel appearing for the applicant would submit that, except for the memorandum statements of the co-accused persons, including Mandeep Singh, Babu Khemani and Harsh Nagdev, there is no other concrete evidence available in the charge sheet to connect the present applicant with the offence in question. The witnesses to the memorandum statements, namely, Udit and Kanhaiya, have also not disclosed anything incriminating against the present applicant in their statements. It is further submitted that there is no allegation that the present applicant was himself engaged in online gambling or had actively participated in the alleged syndicate, and the allegation against him is limited to managing the cash amount allegedly generated by the other accused persons through online betting activities. No incriminating

data connecting the applicant with the alleged offence could be recovered from the electronic devices seized from him, nor is there any record of bank transactions evidencing the alleged transfer of money generated through online gambling activities. Learned counsel would further submit that the memorandum statements of the co-accused persons are inadmissible in evidence and cannot, by themselves, constitute sufficient material to justify the applicant's continued incarceration. It is also submitted that approximately 13 co-accused persons, including Harsh Nagdev, have been granted bail by the Hon'ble Supreme Court, and the case of the present applicant stands on a similar footing. The investigation has been completed, the charge sheet has been filed, and charges have been framed against the accused persons. The applicant has no criminal antecedents and has been in custody since 15.04.2026. As the trial is likely to take considerable time to conclude, learned counsel prays that the applicant may be enlarged on bail.

5. On the other hand, learned counsel appearing for the State opposes the submissions made by learned counsel for the applicant and has submitted that, the allegations against the present applicant are that he is also a part of the syndicate, which runs online gambling in cricket matches through the website “3 Stumps”, which is being operated by Gulshan @ Babu Khemani. The present applicant is also allegedly operating panels of online gambling in cricket matches and running their activities. The memorandum statement of the applicant has also been recorded, in which he also disclosed the manner of the online gambling activities, in which he along with other accused persons were involved.

They also disclosed the operation of other betting App in the style of “www.wood777.com”, “www.wazirbook.com”, “3 stumps”, “bajrang group”, “reddy group” “rishu group” and other names. From the present applicant, 01 laptop, 03 mobile phones, 04 SIM cards and 01 notebook have been seized, from which sufficient material of online gambling have been extracted, which directly involved the present applicant in the syndicate of online gambling. Looking to the allegations that the accused persons have formed a syndicate and are engaged in online gambling, and that their online gambling activities are spread throughout various States of the country, like Chhattisgarh, Maharashtra and Goa, the huge network of their online gambling operations, the number of accused persons, who are part of their syndicate, the number of electronic gadgets which they are using for running online gambling, and the fact that the anticipatory bail application of Bramha Nand Khemani has already been rejected by this Court vide order dated 30.07.2026, passed in MCRCA No. 828 of 2026 and regular bail applications of co-accused persons, namely, Sunil Kumar Komre (MCRC No. 8892 of 2026), Harsh Nayak and Akash Sagar (MCRC No. 8940 of 2026), Kamlesh Dewangan (MCRC No. 9064 of 2026) Sushil Kumar Paswan (MCRC No. 8904 of 2026), Kunal Bhoi (MCRC No. 8896 of 2026) and Dharamraj (MCRC No. 8894 of 2026) have already been rejected by this Court vide order dated 06.10.2026, the present applicant is not entitled to be released on bail.

6. I have heard the learned counsel for the parties and perused the case diary.

7. Having considered the submissions of learned counsel for the respective parties and having perused the material available on record and the case diary, this Court finds that the allegations against the present applicant is not confined merely to the memorandum statements of the co-accused persons. The prosecution has alleged that the applicant was part of an organized syndicate engaged in online gambling in cricket matches through various betting applications and panels, and during investigation several electronic devices, including mobile phones and laptops, as well as SIM cards, ATM cards, cheque books and passbooks, were seized from them, from which, incriminating material connecting the applicant with the alleged gambling activities has been extracted. The alleged activities of the syndicate are stated to have extended across different States and involved a large number of persons and electronic devices. The nature and extent of the alleged organized gambling network, the specific role attributed to the applicant, the material collected during investigation and the fact that the anticipatory bail application of Bramha Nand Khemani as well as regular bail applications of Sunil Kumar Komre, Harsh Nayak, Akash Sagar, Kamlesh Dewangan, Sushil Kumar Paswan, Kunal Bhoi and Dharamraj have already been rejected by this Court, are relevant circumstances weighing against the applicant at this stage. Merely because the charge-sheet has been filed, the applicant has no criminal antecedent, or some other co-accused have been granted bail by the Hon'ble Supreme Court, would not, in the facts and circumstances of the present case, constitute sufficient grounds for extending the benefit of bail to the present applicant. Having regard to

the gravity and nature of the allegations, the material collected during investigation and the overall circumstances of the case, this Court is of the considered view that the applicant do not make out a case for grant of bail.

8. Accordingly, the bail application filed by the present applicant **Vinay Kumar** is hereby **rejected**.

Sd/-
(Ravindra Kumar Agrawal)
Judge

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